

26CHCV00001 26CHCV00001

County: los-angeles

Division: Civil Law and Motion

Department: F46

Hearing date: 2026-07-08

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DEFENDANT THE LAW OFFICE OF BRIAN S. WEINBERGER'S MOTION
TO DISMISS ACTION FOR FAILURE TO TIMELY FILE FIRST AMENDED COMPLAINT

Motion filed on April 30, 2026.

MOVING PARTY: Defendant The Law Office of Brian S.
Weinberger

RESPONDING PARTY: None

NOTICE: OK.

RELIEF REQUESTED: Dismissal based on Plaintiff's failure to
file an amended complaint after the Court sustained Defendant's demurrer with
leave to amend.

RULING: Granted.

BACKGROUND/DISCUSSION

On January 2, 2026, Plaintiff Christopher Chon filed a
complaint against Defendant The Law Office of Brian S. Weinberger asserting a

single cause of action for fraud. On March 2, 2026, Defendant filed a demurrer to the Complaint. On April 7, 2026, the Court sustained the demurrer with 20 days leave to amend. The clerk gave notice. Defendant filed the instant motion on April 30, 2026, supported by the declaration of Nika Chegenizadeh. No timely opposition to the motion was filed.

Code of Civil Procedure section 581, subdivision (f)(2) provides that the court may dismiss the complaint as to a defendant when, "[e]xcept where Section 597 applies, after a demurrer to the complaint is sustained with leave to amend, the plaintiff fails to amend it within the time allowed by the court and either party moves for dismissal."

Here, on April 7, 2026, the Court sustained Defendant's demurrer with leave to amend and ordered Plaintiff to file any amended complaint within 20 days, making April 27, 2026 the deadline to amend. Plaintiff did not file an amended complaint by that deadline. (Chegenizadeh Decl. ¶ 8.) Nor has Plaintiff filed an amended complaint at any time thereafter. Code of Civil Procedure section 597 does not apply because no answer pleading a special defense is at issue, and the demurrer was not sustained under Code of Civil Procedure section 430.10, subdivision (c). The statutory requirements for dismissal under Code of Civil Procedure section 581, subdivision (f)(2) are met.

CONCLUSION

Defendant The Law Office of Brian S. Weinberger's motion to dismiss is granted. Plaintiff Christopher Chon's Complaint, filed on January 2, 2026, is dismissed with prejudice.